

LIMITED

CROSS ACCESS EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS, that the Brecksville-Broadview Heights City School District, (hereinafter referred to as District), owner of Parcel A as described on the attached Exhibit A, and City of Brecksville, an Ohio Municipal Corporation, (hereinafter referred to as City), owner of Parcel B, as described on the attached Exhibit B, in consideration of (\$1.00) and the mutual promises and obligations recited below, hereby covenant and agree as follows:

1. Subject to paragraph 4 below, the District, for the benefit of City and its successors, assigns and transferees, hereby grants the City in respect to Parcel A, a cross access easement for automobiles and other motor vehicles ("Easement A"), as described and depicted herein and on Exhibit C.
2. Subject to paragraph 4 below, the City, for the benefit of District and its successors, assigns and transferees, hereby grants the District, in respect to Parcel B, a cross access easement for automobiles and other motor vehicles ("Easement B"), as described and depicted herein on Exhibit C.
3. Together Easement A and Easement B shall be known as the "Easement Areas".
4. The Easements Areas are intended to promote better vehicular access and circulation to and from the parcels owned by the District and the City, through the paved drives and walkways depicted on Exhibit C. Notwithstanding the foregoing, the District and City agree to promote the safety of the District's pupils by limiting the public access created by the easements in a manner reasonably calculated to protect the pupils from possible disturbances or harm resulting from public use of the easements.

5. The paved areas within the Easement Areas shall be constructed and maintained in a good and useful condition by the respective property owners, with damages caused by either parcel owner or its guests or invitees to be promptly repaired by that parcel owner utilizing the Enterprise Fund created by Article V of the Shared Use Agreement dated _____ by and between the City and the District. For purposes of the activities required and authorized by this section, the parcels shall be subject to and burdened by temporary easements over such portions of the parcel as are reasonably necessary for the performance of the required maintenance or repairs.
6. This easement and the rights and responsibilities set forth are permanent and perpetual and intended to bind the parties hereto, their heirs, successors and assigns, and their respective properties, to touch and concern said parcels, and to run with the land and succeeding interests therein.
7. This agreement and the easements granted may not be expanded or modified except by a further agreement in writing and in recordable form by the parties hereto or their heirs, successors or assigns.

City of Brecksville

Brecksville-Broadview Heights City School
District

Mayor Jerry N. Hruby

Superintendent Joelle Magyar

County of Cuyahoga)
) SS:
State of Ohio)

BEFORE ME, A NOTARY PUBLIC in and for said County, personally appeared the above named _____, authorized representative of the City of Brecksville who acknowledged that he did sign the foregoing instrument and that the same is his free act and deed, and that of the Company.

IN TESTIMONY WHEREOF, I have hereunto set my hand and official seal at Brecksville, Ohio this _____ day of _____, 2020.

Notary Public

County of Cuyahoga)
) SS:
State of Ohio)

BEFORE ME, A NOTARY PUBLIC in and for said County, personally appeared the above named _____, authorized representative of the Brecksville-Broadview Heights District of Education who acknowledged that she did sign the foregoing instrument and that the same is his free act and deed, and that of the Company.

IN TESTIMONY WHEREOF, I have hereunto set my hand and official seal at Brecksville, Ohio this _____ day of _____, 2020.

Notary Public

**THIS INSTRUMENT PREPARED BY:
SERGIO DiGERONIMO
ATTORNEY AT LAW
8748 BRECKSVILLE ROAD
BRECKSVILLE, OHIO 44141**